

9:30 a.m. CALENDAR

LINE

2

**IN THE MATTER OF THE JOSEPHINE F. HEATH LIVING TRUST
FPR041167**

Petitioner Edwin Heath's Application for Reconsideration of the Granting of June 12, 2026 Ex Parte Application Permitting Sale

Opposition Of Trustee/Respondent Kathleen Maiman to Petitioner Edwin Heath's Request for Reconsideration of Ex Parte Order Granting Approval of Sale

PREGRANT ORDER

This matter was continued from July 29, 2026 to allow the moving party to address issues with the petition. Nothing has been filed by the moving party since the last hearing. The court has reviewed the opposition filed too late to be reviewed for the last hearing.

The court sustains the objection and dismisses the application for reconsideration.

LINE

3

**IN RE THE ESTATE OF EILEEN RUTH CONNELLY, DECEASED
FPR051867**

First and Final Report of Personal Representative; Petition for Final Distribution on Waiver of Account and for Payment of Compensation to Personal Representative

PREGRANT ORDER

This matter was continued from July 29, 2026 to allow the petitioner to address issues with the petition. Nothing has been filed since the last hearing.

The court on its own motion continues this hearing to December 3, 2026, at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issues:

1. A personal representative is required to file an Inventory and Appraisal within four months after letters are first issued to a general representative. (Prob. Code §8800(b).) Letters were issued on August 21, 2023; thus, the final Inventory and Appraisal was due by December 21, 2023 but was not filed until May 27, 2026. The 29-month delay in filing is unexplained.
2. Pursuant to Probate Code section 12200(a), a personal representative is to file either a petition for final distribution or a status report within one year of the date letters are issued if no estate tax return is required, and within eighteen months of the date letters

are issued if an estate tax return is required. Here, letters were issued on August 21, 2023. As the estate is of an insufficient size to require an estate tax return, the petition for final distribution or a status report was due by August 21, 2024. No status reports were filed in 2024 or 2025, and no petition was filed until June 8, 2026. There is no explanation given for the delay.

3. The Proof of Service is missing the date on the server's signature. Additionally, notice was not given to the administrator of the estate of Patrick Connelly.

4. Petition, item 12: The petition states that the Inventory was filed November 27, 2023 with a value of \$188,761.03. The court file does not contain an Inventory filed on that date. The court file shows a partial Inventory filed March 11, 2024 with a value of \$197,651.66. The petition does not mention the corrected Inventory filed May 27, 2026 with the final, corrected value of \$178,347.57.

LINE

4

**IN RE THE ESTATE OF BETTY WADLEY, DECEASED
PR23-00420**

First and Final Account and Report of Administrator and Petition for Final Distribution and for Allowance of Statutory Compensation and Extraordinary Fees

PREGRANT ORDER

This matter was continued from August 17, 2026 to allow the petitioner to address issues with the petition. Nothing has been filed since the last hearing.

The court on its own motion continues this hearing to December 7, 2026 at 9:30 a.m. in Department 22. Pending the continued hearing, the petitioner shall resolve the following issues:

1. The petition states that the beneficiaries of the decedent were Anthony Wadley, Sr. and Larry Darnell. However, the decedent had two other predeceased children, "David Dixon, II" and "Michael Dixon" who left issue, who were not given notice and may be entitled to a share of the distribution of the estate. The petitioner shall file proof of service showing proper notice has been given. (Prob. Code §6402(a).)
2. Petition, item 16: The addresses for each heir were missing from the petition for final distribution and a statement indicating whether they are adults or minors. In addition, the petition was missing the date of death for the decedent's deceased children and the information for their issue. (Solano County Local Rule 7.66 d (1).)